



भारतीय राष्ट्रीय राजमार्ग प्राधिकरण
(सड़क परिवहन और राजमार्ग मंत्रालय)
National Highways Authority of India
(Ministry of Road Transport and Highways)
जी-5 एवं 6, सेक्टर-10, द्वारका, नई दिल्ली-110075
G-5 & 6, Sector-10, Dwarka, New Delhi-110075

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DEBARMENT NOTICE

NHAI/CG/2022/Durg-Raipur-Aurang (Pkg-B)/AE/138

Dated: 06.11.2024

To,

Mr. Ghanshyam Patel

Resident cum Highway Engineer

554, Near JDA Godown, Shakti Nagar,

Jabalpur Madhya Pradesh.

E-mail: ghanshyam.1975patel@gmail.com

Sub: Consultancy Services for Authority's Engineer for Supervision of Construction of 6-lane Durg – Raipur – Arang Bypass section of NH-53 from Design Ch. 44+500 (Vill. Parsada) to Design Ch. 92+230 (Vill. Paragaon) in the state of Chhattisgarh on EPC Mode under Bharatmala (Package-B) ("**Project**"): **Issuance of 'Debarment Notice' – reg.**

- Ref:**
- Consultancy Agreement dated 01.05.2023
 - Authority's Letter No. NHAI/CG/2022/Durg-Raipur-Aurang (Pkg-B)/AE/E-35 dated 12.07.2024.
 - Authority's Letter No. NHAI/CG/2022/Durg-Raipur-Aurang (Pkg-B)/AE/52 dated 16.07.2024.
 - Key Personnel's reply letter no. Bloom/SO/AE/1099/DRA/PKG-B/NH-53/NHAI/2024/521 dated 25.07.2024.

Dear Sir,

This is with reference to the Consultancy Agreement signed between the National Highways Authority of India ("**NHAI**" or "**Authority**") and M/s Bloom Companies LLC in JV with M/s Almondz Global Infra-Consultant Limited ("**Consultant**") rendering the services of the Authority Engineer for the Project on 01.05.2023 ("**Consultancy Agreement**"). It is stated that the Consultant has deployed Mr. Ghanshyam Patel the position of Resident cum Highway Engineer ("**Resident cum Highway Engineer**") in the Project.

2. In this context, various anomalies on the part of Authority's Engineer have been brought out by the team of NHAI HQ during the site visit on 19.04.2024 to 21.04.2024. The details of the anomalies observed by the Authority are as follow:

- Authority has identified wrong payments of Rs. 66,02,14,139/-. The aforementioned excess payments were calculated according to the payment methodology adopted by the AE, but the AE was unable to provide backup calculations for the methodology adopted for making these payments.

- ii. Work was in progress without approval of the drawings.
- iii. Deviations in the proposed span of the structure was observed from Schedule-B.
- iv. Invert level of the culverts was observed to be below the ground level.

3. Pursuant to which, the Authority has issued a Show Cause Notice to the Resident cum Highway Engineer vide its letter dated 12.07.2024 and 16.07.2024 (cited at under ref. (ii) and (iii) above respectively) seeking explanation from the Resident cum Highway Engineer regarding his failure to fulfill his obligations and performing his duties in terms of sub-clause 3(a), (c) and (e) of Clause 1.1 of Appendix N of the Consultancy Agreement. The Resident cum Highway Engineer vide his letter dated 26.07.2024 (cited at under ref. (iv) above) made his representation to the Show Cause Notice in writing. It is pertinent to mention that the Resident cum Highway Engineer was also afforded with an opportunity of personal hearing on 11.09.2024.

4. Therefore, upon examination of representation of the Resident cum Highway Engineer and considering the explanation offered by him during the personal hearing, the Authority is of the view that the Resident cum Highway Engineer in its response regarding the incorrect payments of Rs. 66,02,14,139/- misrepresented the facts by asserting that the certification of works done in SPSs were as per the Project Director's directions. The Resident cum Highway Engineer also failed to justify as to why unapproved payment methodologies for soil bund, C&G, embankment core, finishing work and culverts in highway works was followed which was not supported as per the provisions of the Schedule-H and covered under the relaxation of Schedule-H provided under NHAI Circular no. 18.46/2022 dated 22/06/2020 and Circular No. 18.86/23 dated 12/05/2023 ("**Circulars**"). The Resident cum Highway Engineer contention in its representation concerning payments of structures in number of foundations contradict the requirements of Schedule-H and relaxations provided under the Circulars. Furthermore, Resident cum Highway Engineer admitted permitting work on river bridges and VUPs without the necessary approvals, which demonstrates a lack of adequate approach towards fulfilment of his duties. It further attempted to misrepresent the fact that the calculation adopted by the Consultant was as per Schedule-H and Circulars. Further, the Resident cum Highway Engineer was erroneous in stating in its response that no apparent cost and time implications are there in the adopted payments methodology and it is in compliance with Schedule-H and relaxation provided in Circulars. Hence, in view of the above it is apparent that the Resident cum Highway Engineer has failed to discharge his duties and to provide any justification and evidence with respect to the same.

5. It is evident from the submission under the preceding paras that the Resident cum Highway Engineer has not discharged his duties in accordance with the provisions of the Consultancy Agreement and is therefore guilty of wilful dereliction of duties resulting into time and cost implications in the Project upon the Authority. In view of the aforesaid, the Authority in accordance with the sub-clause 3(a), (c) and (e) of Clause 1.1 of Appendix N of the Consultancy Agreement read with NHAI Policy Circular No.16.12/2022 dated 18.01.2022 (NHAI/Policy Guidelines/ Non-Performer & Debarment/2022) in accordance with S. No.3 (a), (c) & (e) of the table given in Para-4.1 hereby declares the Mr. Ghanshyam Patel, the Resident cum Highway Engineer as non-performer and debars him from participation in the future works of NHAI for the period of 2 years from the date of this Notice.

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6. The instant Notice is being issued without prejudice to Authority's right to claim damages and/or to realize any dues, losses and damages and/or to exercise any other right or remedy on account of Resident cum Highway Engineer's failure to comply with its obligations under the Consultancy Agreement, which may be available now or in future under the Consultancy Agreement or under the applicable laws or otherwise, as the case may be.

This Notice is issued with the approval of the Competent Authority of NHAI.

Yours faithfully,


6/11/2024
(Kamal Kant Mishra)
General Manager (Tech)-CG

Copy to:

- i. RO Raipur for kind information and necessary action.
- ii. PIU Raipur for kind information and necessary action.